



File No.: EXP202312887 (AI/00327/2024)

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 26, 2023, a complaint was filed with entry registration number REGAGE(...) before the Spanish Agency for Data Protection against SEUR GEOPOST, S.L. with NIF B82516600 (hereinafter, SEUR GEOPOST). The reasons for the complaint are as follows:

The complainant states that they were the recipient of a package whose delivery management was carried out by the complained entity and that on July 18, 2023, they were informed that it had been delivered, although they had no record of it being delivered to their home. Therefore, they contacted both the sending entity and the entity responsible for the delivery of the package, with the latter indicating that the delivery was made to a neighbor, although the data included in the delivery note does not correspond to any neighbor, and there is no record that it was actually delivered to that neighbor. It appears that it was delivered to a third party, or the package has been lost, which would jeopardize access to the complainant's data included on the shipping label of the package. Along with the complaint, communications exchanged with the sending entity regarding the destination of the package, communications related to its shipment, and the delivery note are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGD), this complaint was forwarded to SEUR GEOPOST for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on September 26, 2023, as evidenced by the acknowledgment of receipt in the file. On October 24, 2023, a response was received by this Agency indicating:

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“FIRST.- If the delivery of the shipment was made by a third party in execution of a contract with your entity, you must provide the identification of the third party and a copy of the contract under which the delivery was made.

This point is not applicable to the case subject to the complaint, as in this case, the delivery is made directly by SEUR GEOPOST.

SECOND.- In the event that the provision of the delivery service is linked to a contract with the supplier of the product/seller, you must provide a copy of the contract signed with that company.

This party wishes to point out that SEUR maintains a contractual relationship with the company ZALANDO (hereinafter ZALANDO), where SEUR is obliged to provide ZALANDO with the transportation service consisting of the collection of the shipments that it requests for delivery to the destination.

As requested by the AEPD, a summary of the contract signed between SEUR and the company ZALANDO is attached as Annex I.

THIRD.- The decision made regarding this complaint and a report on the causes that led to the incident that originated the complaint.

Following the receipt of this information request, SEUR has proceeded to investigate the events that occurred and has verified the following:

- That a SEUR delivery person went to the complainant's home to make a delivery.

- That the complainant was absent at the time of delivery.
- That consequently, the delivery person delivered the complainant's package to the neighbor on the 1st, with this information recorded in the delivery note.

Thus, after analyzing the facts, we consider that the incident occurred as a result of an error by the delivery person, for not having followed SEUR's internal protocols for the correct delivery and collection of goods.

In this regard, SEUR informs the AEPD that, in compliance with the obligations of the applicable regulations of its transportation activity, it has implemented the corresponding procedures and corporate manuals, which determine the guidelines to be followed for the correct delivery or collection of goods.

Specifically, SEUR has a manual with the operational procedures that delivery persons must follow called "Delivery Person Operational Manual," a document that is provided to them at the time of hiring or the start of service provision with SEUR. According to what is specified in this manual, when a recipient is absent from home, the delivery person will notify the absence in the PDA, automatically triggering a call to the recipient to agree on a new delivery method, among which is the authorized delivery to a third party. Annex II includes screenshots from the manual specifying the obligations of delivery persons for the correct delivery or collection of goods.

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Therefore, through that call, the recipient is given the opportunity to grant their authorization for the delivery person to leave the merchandise with third parties such as a neighbor, the concierge, etc. If the recipient authorizes this, the delivery person will mark this option on the PDA by pressing the button "Delivery authorized at another address." This entire operation is part of the training provided to delivery personnel to comply with SEUR's internal protocols. An excerpt of the training in this regard is included as Annex III.

Additionally, SEUR provides delivery personnel with other periodic training on the importance of properly handling and diligently treating the personal data they manage daily from senders, recipients, and/or authorized persons. Specifically, one of the latest training actions consisted of disseminating a video titled "Best Practices in Privacy."

Likewise, as part of these periodic trainings, an instructional video titled "Delivery Procedure: Absent Customer" has been developed with the aim of reinforcing awareness about the protocol to follow in these cases. An excerpt of this training is included as Annex IV.

For all these reasons, as previously mentioned, we confirm that the incident occurred due to a specific malpractice by the delivery person for not following the company's internal protocols, and therefore following a practice not authorized by SEUR.

FOURTH.- Report on the measures adopted to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

As described in the previous section, SEUR has implemented adequate measures in the various delivery procedures and manuals to prevent the reported events from happening again. Furthermore, periodic training is conducted to raise awareness among delivery personnel about these practices, with the aim of respecting the rights regarding data protection of the recipients of goods transported by SEUR.

However, as a consequence of the incident that occurred, SEUR has reiterated to all delivery personnel the necessity of complying with the established protocol for delivery in case of absence at the residence, emphasizing the obligation to agree on a new delivery method and, if applicable, to request authorization for delivery to third parties. Additionally, it has been planned to provide all delivery personnel with the training included in Annex IV to reinforce awareness about the protocols to follow.

Finally, we want to reiterate our commitment to ensuring the security and confidentiality of the data we manage daily, as well as to comply in a timely manner with the provision of the transportation service

for goods contracted by our clients.”

THIRD: On October 26, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, in accordance with the provisions of Article 4.1 of the GDPR, it is noted that there is a processing of personal data, since SEUR GEOPOST carries out, among other processes, the storage and use of the following personal data of individuals, such as: name, surname, and address of its clients.

SEUR GEOPOST carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, section 12 of the GDPR broadly defines "personal data security breaches" (hereinafter personal data breach) as "all breaches of security that result in the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

III

Presumption of Innocence

In this case, a complaint is made due to the delivery of a shipment intended for the complainant, according to the delivery note from SEUR GEOPOST, to "Sonia," with the observation "main neighbor 1," which leads the complainant to consider that the confidentiality of their personal data may have been compromised.

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Specifically, the claiming party has stated that their data was exposed to a third party (their neighbor) as it was included on the shipping label: "with all my personal data on the package label."

This Agency understands that confidentiality will only be affected when access is granted to a third party to personal data that is not public or that was not previously known to that third party. Thus, the delivery of the order to a neighbor of the claiming party, when no additional data beyond what is strictly necessary for delivery (name and address) is included in the postal shipment, does not compromise the confidentiality of the recipient's personal data, as no personal data of the claiming party that the recipient did not already know is disclosed.

In conclusion, in the case at hand, the examination of the documents provided in the transfer

proceedings highlights the absence of evidence capable of justifying the initiation of sanctioning proceedings, as it has not been established that personal data of the claiming party, beyond their name and address, was exposed to unauthorized third parties, given that the order was delivered to the neighbor residing in the same building as the claiming party, and there is no record that any data not already known to them was disclosed. The delivery receipt issued by the courier company, submitted along with the complaint, does not serve to substantiate such a circumstance.

In this regard, it should be emphasized that in the context of administrative sanctions, the principles inspiring criminal law apply, with some nuances but without exceptions, and the principle of the presumption of innocence has full effect, which must govern without exceptions in the sanctioning framework and must be respected in the imposition of any sanctions. The Constitutional Court in Judgment 76/1990 (STC) considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, with no one being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

In accordance with this approach, Article 53.2 of the LPACAP establishes that, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

"a) (...)

b) The presumption of non-existence of administrative responsibility until proven otherwise."

As the Supreme Court clarified in its Judgment of October 26, 1998, the validity of the principle of the presumption of innocence "does not preclude the judicial conviction in a process from being formed on the basis of circumstantial evidence, but for this evidence to undermine that presumption, it must meet the following constitutional requirements: the indications must be fully proven – they cannot be mere suspicions – and the reasoning by which, based on the proven indications, the conclusion has been reached must be explicit."

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The accused engaged in the infringing conduct, as otherwise, neither the subsumption would be grounded in law nor would there be a way to determine if the deductive process is arbitrary, irrational, or absurd; that is to say, if the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating."

In this regard, it is necessary to distinguish true evidence from mere suspicions or conjectures. The Constitutional Court has stated in its Judgment 24/1997 that "the criteria for distinguishing between circumstantial evidence capable of undermining the presumption of innocence and mere suspicions are based on the following: a) Circumstantial evidence must stem from fully proven facts. b) The facts constituting the crime must be deduced from those indications (completely proven facts) through a reasoned mental process in accordance with the rules of human judgment, as set forth in the convicting judgment (SSTC 174/1985, 175/1985, 229/1988, 107/1989, 384/1993, and 206/1994, among others)."

In short, the principle of the presumption of innocence prevents the imputation of an administrative infraction when there has not been obtained and verified incriminating evidence that substantiates the facts motivating the imputation or the involvement of the alleged infringer in them.

In this case, as has been stated, there are no rational indications that would allow imputing to the claimed party the commission of the infractions of the personal data protection regulations reported, therefore, it cannot be considered that the right to the presumption of innocence that protects them has been undermined.

IV

Adoption of measures for compliance with the regulations

SEUR GEOPOST states in the document submitted to the AEPD on October 24, 2023, that "...it has

implemented adequate measures in the various procedures and delivery manuals to prevent the reported events from happening again. Additionally, periodic training is conducted to raise awareness among delivery personnel about these practices, with the aim of respecting the data protection rights of the recipients of goods transported by SEUR.

However, as a result of the incident that occurred, SEUR has reiterated to all delivery personnel the necessity to comply with the established protocol for delivery in case of absence at the residence, emphasizing the obligation to agree on a new delivery method and, if applicable, to request authorization for delivery to third parties. Furthermore, it has been planned to provide all delivery personnel with the training included in Annex IV to reinforce awareness of the protocols to be followed. ..."

In Annex IV of the documentation provided by SEUR GEOPOST, it is verified that, in the training provided to its staff, the following message is included: "Without prior authorization from the customer, it is NOT permitted to deliver to a nearby store (if it is not a pickup), to a neighbor, or even to the doorman."

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Consequently, it is evident that SEUR GEOPOST has adopted additional measures subsequent to the submission of the complaint. Thus, regardless of what has been indicated in the previous Legal Basis, the application of Article 65.6 LOPDGDD is appropriate, which expressly states that:

"(...) 6. After the admission for processing, if the data controller or processor demonstrates having adopted measures for compliance with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint when specific circumstances advise the adoption of other more moderate or alternative solutions to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated (...)."

V

Conclusion

Therefore, based on the indications in Legal Basis III, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Moreover, in accordance with Article 65.6 LOPDGDD, the data controller demonstrates having adopted measures for compliance with the applicable regulations.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, exercising the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute any responsibility for the exposure of the personal data of the complainant, in accordance with what has been indicated, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to SEUR GEOPOST, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court.

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in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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